

Rules of POWERGRID Employees Post-Retirement Medical Benefit (PRMB) Trust¹

Chapter-1

- 1.0 **Short Title:** The scheme may be called **POWERGRID Employees Post- Retirement Medical Benefit Trust**.
- 2.0 **Applicability:** The scheme applies to all employees in the regular pay-scale in Workmen, Supervisor and Executive category.

Chapter-2

- 4.0 **Definition**
In these Rules, where the context so admits, the masculine shall include the feminine, the singular shall include the plural and the following words and expressions shall unless repugnant to the context, have the following meanings:
- 4.1 The **Act** means the Income Tax Act 1961.
- 4.2 **Approved Fund** shall mean POWERGRID EMPLOYEES POST-RETIREMENT MEDICAL BENEFIT FUND (hereinafter referred to as "Post-Retirement Medical Benefit Fund") for employees of POWER GRID CORPORATION OF INDIA LIMITED which has been recognized by the Commissioner of Income Tax under Income Tax Act 1961.
- 4.3 **Beneficiary** shall mean a Member of the Post-Retirement Medical Benefit Fund in respect of whom the superannuation benefits are payable under these Rules and shall include the Member's spouse.
- 4.4 **Commissioner** means the Commissioner of Income Tax, Delhi having jurisdiction over the Post-Retirement Medical Benefit Fund.
- 4.5 **Contribution** means fixed sum contributed by the retired employee in order to become member of Post-Retirement Medical Benefit Scheme and contribution made by the Corporation within the ceiling of 30% of salary, after deducting the contribution towards Provident Fund, Gratuity and Pension or any other retirement benefit for those employees who are superannuating after 01.01.2007. For employee who have retired prior to 01.01.2007, Company shall contribute up to 1.5% of Profit before Tax (PBT) for creation of corpus towards Post-Retirement Medical Benefits.
- 4.6 **Employer** shall mean POWER GRID CORPORATION OF INDIA LIMITED (hereinafter referred to as "POWERGRID" OR "CORPORATION") and every power, authority and discretion vested in the Corporation or by the Chairman and Managing Director upon which power, authority and discretion being delegated to him by the Board of Directors of the Corporation or by the Chairman & Managing Director upon such power, authority and discretion being delegated to him by the Board of Directors of the Corporation and subject to the prior intimation to the Commissioner of Income Tax, shall include any firm, concern, agency or body corporate which may, purchase, amalgamate or otherwise take over the whole or substantially the business of the Corporation and which shall enter into a Deed in such a form as the Trustees shall require undertaking to continue the obligations of the Corporation under these presents and releasing the Corporation from all further liability thereof.

¹ Revised via Cir No. 383/2017 dated 24.06.2017

- 4.7 **Employee** shall mean any person who is in the whole-time employment of the Corporation in the pay scales applicable to Workmen, Supervisor and Executive category.
- 4.8 **“Family”** means:
- (a) ²In the case of a married member - He and his spouse (only one).
(Re-marriage of member consequent upon death of spouse, shall not entitle the present spouse to post-retirement medical facility under the scheme)
- (b) In the case of un-married member – Self only.
- 4.9 **Financial Year** means a period of twelve months commencing from 1st April and ending on 31st March of subsequent calendar year.
- 4.10 **Salary** means Basic Pay, Dearness Allowance, Stagnation Increment and Special Increment (if any).
- 4.11 **Superannuation** in relation to an employee shall be the date the employee shall vacate his employment upon attainment of such age as is fixed in the terms of appointment or Service Rule of the Corporation and in absence of such contract of agreement, 60 years.
- 4.12 **Trustees** shall mean the Trustees for the time being of the Post-Retirement Medical Fund.
- 4.13 **Trust** shall mean POWERGRID EMPLOYEES POST-RETIREMENT MEDICAL BENEFIT TRUST.
- 4.14 **The Trustees to act for members and the Corporation:** The Trustees will act for and on behalf of the employee and the Corporation in any matter relating to the Post-Retirement Medical Fund within the framework of the Trust Deed and the Rules there under.
- 4.15 **Medical Board:** Medical Board shall mean Board constituted by CMD for referring any medical cases which require reviewing or re-examining.

² Circular No. 386/2017 dated 24.07.2017

Chapter-3

5.0 ELIGIBILITY & REQUIREMENTS FOR MEMBERSHIP

The benefits under this scheme shall be available for employees who have superannuated/separated (on medical grounds) subject to fulfilment of following eligible conditions:

5.1 The eligible employees of POWERGRID who have been separated and those who will be separated in future have to become a member of the scheme provided they fulfil the undernoted eligibility criteria:

(i) On superannuation from POWERGRID on attaining the age of retirement which at present is 60 years or are separated by the Company on medical grounds provided that the employee has completed a minimum qualifying period of 15 years of continuous service* in CPSE including period of service rendered in POWERGRID. In case there is difference in date of leaving from one CPSE and joining another CPSE upto 60 days then it will be treated as continuous service based on declaration of employees.

***{ a) Employees who had joined POWERGRID prior to 01.01.2007 and have retired after 01.01.2007 and availing POWERGRID Post-Retirement Medical Facility shall continue to be covered under these rules.**

(b) Existing employees who have joined POWERGRID after 01.01.2007 and will be serving 10 years of continuous service but shall not be completing 15 years of continuous service prior to superannuation as on date of issue of these rules (24.06.2017) will also be covered under these rules.}

(ii) Board level appointees on completion of the tenure (one single tenure) or on separation on medical grounds.

(iii) POWERGRID Executives and Functional Directors who are appointed to senior or top level posts through Government Order or Presidential Order in other PSUs/Government Department/Authority/Board etc., on retirement, on attainment of age of superannuation or on completion of the tenure of appointment or on separation on medical grounds from such other organisations avail membership under the scheme, provided concerned Executives/Functional Directors/CMD exercise their option for coverage under POWERGRID Employees Post-retirement Medical Scheme and continues his/her contribution* towards the scheme, whether or not Post-retirement Medical Facility in any form exists in such organisations and provided concerned employees fulfil minimum qualifying period of fifteen years of continuous service. Further, benefit can be availed either under POWERGRID Post-Retirement Employees Medical Scheme or any scheme of post-retirement medical facility of such other organisations but not both.

*(Delay in remittance of such contributions is liable to interest being charged from the member at 1% higher than the interest earned by the Trust apart from the Trustees taking further action as deemed appropriate in case.)

5.2 In case of death of the retired/ separated employee who has been availing of the benefits under the Scheme, his/her spouse will continue to avail the benefits under the Scheme subject to his/her continuing to meet the terms and conditions of the scheme.

5.3 The benefits under the Scheme would be available to the concerned employee only if the employee concerned and his/her spouse is not availing any medical facilities from or through the Central/State Government/Public Sector Undertaking/Quasi-Government Body.

- 5.4 Eligibility in different situations has been mentioned in SI.No:06 below. They will also continue to become eligible for membership provided they fulfil the eligible conditions mentioned therein.
- 5.5 **Employee not to withdraw**
No employee shall withdraw from the Post-Retirement Medical Scheme while he is still an employee of the Corporation.
- 6.0 **ELIGIBILITY IN DIFFERENT SITUATIONS**
- 6.1 **In case of Death of an employee while on service.**
The Corporation is having a separate Contributory Scheme of Medical Facilities for Spouse and Minor Children of deceased employees and in happening of above event, the medical benefits to the spouse & dependents will be regulated as per the said Scheme. The Contributory Scheme of Medical Facilities for Spouse and Minor Children of the deceased employee will in no way be linked to this particular Scheme.
- 6.2 **In case of resignation from the service of the Corporation.**
- (i) In case the employee resigns from the services of the Corporation then the entire amount of contribution will be forfeited and his membership under the Scheme shall be dis-continued irrespective of number of years of service.
- (ii) In case the employee resigns from the services of the Corporation and joins CPSE where similar scheme exists, then his individual corpus can be transferred to such CPSEs, provided the CPSE agrees to accept the fund transfer and the request for transfer through proper channel.
- 6.3 **Post-Retirement Medical Benefits in case of employees against whom disciplinary proceedings are going on at time of retirement.**
The benefits under the scheme in case of employee against whom disciplinary proceedings are going on the time of superannuation shall be regulated as per CDA/ Service Rules of POWERGRID.
- 6.4 **Joining from other CPSE.**
Employees joining POWERGRID from other CPSE having similar Post-Retirement Medical scheme shall have the option of transferring their corpus to POWERGRID's Post-Retirement Medical Fund. In such cases, his past service in previous CPSE shall be taken into consideration for determining the eligibility as required under POWERGRID Employees Post-Retirement Medical Scheme. If no such scheme exists in the previous organisation then he shall have to serve minimum of 15 years continuous service before he becomes eligible under this Scheme.
- 6.5 **Employees services lent/deputed to Government/Public Sector Undertaking/ Joint Ventures or other organization.**
In the event of an employee's services being lent by the Corporation to an Organization under the management of or associated with the Corporation or to a Government/Public Sector undertaking or an employee is deputed to any other organization with which the Corporation has taken up joint assignment shall be permitted to continue as Member of the Post-Retirement Medical Fund provided the employee/ borrowing Corporation shall make the contribution at the rates notified from time-to-time. Delay in remittance of such contribution is liable to interest being charged from the member at 1% higher than the interest earned by the Trust, apart from the Trustees taking further action as deemed appropriate in case.

6.6 In case of Premature Retirement.

Employees who had been/are allowed to separate from the POWERGRID services on account of premature retirement under Clause 24.5.1 (on grounds of medical unfitness, inefficiency or doubtful integrity) and 24.5.2 (premature retirement) of the SERVICE RULES shall continue to be member of POWERGRID Employees Post-retirement Medical Scheme provided concerned employees fulfil minimum qualifying period of fifteen years of continuous service in POWERGRID including others CPSEs.

6.7 Corporation Decision regarding eligibility Final.

Corporation decision regarding the eligibility of an employee/ spouse for the purpose of the Scheme shall be final and binding on all the parties concerned.

Chapter-4**7.0 Administration****7.1 Procedure for nomination of trustees.**

Chairman and Managing Director (CMD) of the Corporation or any other Director of the Corporation authorized by CMD for this purpose shall nominate/ appoint upto 10 Trustee/ Trustees to administer the Trust. The number of Trustee/ Trustees may be decided by the Corporation as per requirement. Initially, Corporation may nominate 05 trustees for administration of the Trust.

7.2 Trustees to act for members and the employer.

The trustee shall act for and of behalf of the member/ beneficiaries and the Corporation, in any matter relating to the Scheme and every act done by the Trustees shall be binding on the member/ beneficiaries.

7.3 Chairman of the Board of Trustee.

Any Director of the Corporation authorized by the CMD of the Corporation shall be the chairman of the Board of Trustees.

7.4 Secretary to the Board of Trustees.

Board of Trustee may appoint any Trustee to act as Secretary to the Board of Trustee. Secretary shall exercise such powers as delegated to him from time to time by the Board of Trustees or specifically provided hereinafter.

7.5 Term of office of the Trustees.

The term of office of a trustee shall be five years from the date of nomination/ appointment. An outgoing Trustee shall be eligible for re-election or re-nomination for a further period of five years. A Trustee elected or nominated to fill a casual vacancy shall hold for the remaining period of the term of the Trustee in whose place he is elected or nominated.

7.6 Change of Trustees.

In the event of a Trustee resigning his office or a Trustee being unable to continue in office, consequent to death, retirement, resignation/ termination from the service of the Corporation or separation from the service of the Corporation on any other ground or transfer or otherwise his vacancy shall be filled in the manner laid down in rules, and on every such appointment the fund shall vest in the continuing and new trustees.

7.7 Resignation by Trustee.

A Trustee may resign from his office by giving 15 days' notice in writing addressed to the Chairman, Board of Trustees and his office shall fall vacant from the date on which the Chairman accepts his resignation.

7.8 Cessation of Trusteeship.

A Trustee ceases to be Trustee on the Board if he:

- i) Ceases to be an employee of the Corporation, or
- ii) Fails to attend three consecutive meetings of the Board without obtaining leave of absence from the Chairman of the Board of Trustees. Provided that the Chairman, Board of Trustees may restore him to trusteeship, if he is satisfied that there were reasonable grounds for such absence, or
- iii) Goes out of India for more than six months or permanently or by reason of illness/ infirmity or unsoundness of mind, has in the opinion of the Chairman Trust become incompetent or

- incapable of acting as a trustee and the Board of trustees passes an appropriate resolution at their meeting to this effect.
- iv) **Removal of Trustee:** The Board of Trustees may remove from office any trustee of the Board, provided that no such Trustee shall be removed from office unless reasonable opportunity is given to such Trustee of making any representation against the proposed action.
- 7.9 **Disqualifications for Trusteeship.**
A person shall be disqualified for being a Trustee:
- i) If he is declared to be unsound mind by a Competent Court, or
 - ii) If he has been convicted of a offence involving moral turpitude, or
 - iii) Is an un-discharged insolvent, or
 - iv) He has applied to be adjudicated as an insolvent, or
 - v) Is found guilty of misappropriating moneys or property of the Corporation or of the Trust.
- 7.10 **Trustees Power to employ any person for Management.**
The Board of Trustees shall with the consent of the Corporation in writing have power to appoint any person or persons with requisite qualifications to act as Actuary, or the Manager or Managers or Registrars of the Trust or any person/s for legal, accounting, financial/investment management, taxation, auditing, or any other work at such remuneration and on such terms and conditions and with such powers as the Board of trustees may think fit. Remuneration/compensations payable to such person(s) shall be made by the Corporation. The Trustees shall have power at any time to dispense with the services of such person or persons.
- 7.11 **Trustees' power to operate Bank Account.**
Any two Trustees out of those authorized by the Board of Trustees acting jointly shall on behalf of the Board of Trustees, operate the bank accounts of the Trust and discharge, receive or otherwise dispose-off, as may be necessary any investments of the Trust including investment in Government securities, State Development Loans, Corporate Bonds, Interest Warrants, scheme of insurance etc. relating to the Trust.
- 7.12 **Meeting of the Board of Trustee.**
- i) The Board of Trustees shall meet at such place and time as may be appointed by the Secretary with prior approval of the Chairman Board of Trustees.
 - ii) The Secretary may with prior approval of the Chairman and within fifteen days of the receipt of a requisition in writing from not less than two Trustees shall call a meeting thereof.
- 7.13 **Notice of meeting and list of Business.**
Notice of not less than 15 days from the date of posting, containing the date, time and place of every meeting shall be sent to each Trustee. Provided that when the Secretary, with the prior approval of the Chairman, calls a meeting for considering any matter which in his opinion is urgent, a notice giving such reasonable time as he may consider necessary, shall be deemed sufficient.
- 7.14 **Chairman to preside at Meetings.**
The Chairman of Trust shall preside at every meeting of the Board of Trustees at which he is present. If the Chairman Trust is absent at any time, the Trustees present shall elect one of them to preside over the meeting and the Trustee so elected shall exercise all the powers of the Chairman Trust at the meeting.
- 7.15 **Quorum for the meeting.**

At any meeting of the Board of Trustees two (2) shall form the quorum for the meeting. If at any meeting the number of Trustees is less than the required quorum, the meeting shall stand adjourned to next week, same day and same time and it shall thereupon be lawful to dispose of the business at such adjourned meeting irrespective of the number of Trustees present.

7.16 Disposal of Business.

Every question considered at a meeting of the Board shall be decided by a majority of the votes of the Trustees present and voting. Each trustee is entitled to one vote. In the event of an equality of votes, the Chairman shall have second and casting vote. Provided that the Chairman may, if he thinks fit, direct that any question shall be decided by the circulation of necessary papers to Trustees and by securing their opinion of the majority of Trustees received with the time limit allowed and, if the opinions are equally divided, the opinion of Chairman shall prevail. Provided, further that any Trustee may request that the question referred to Trustees for written opinion be considered at a meeting of the Board of Trustees, and thereupon, the Chairman may, and if the request is made by not less than two Trustees, shall direct that it be so considered.

7.17 Minutes of meeting.

- i) The secretary shall maintain the meeting of the Board of Trustees showing inter-alia the name of the Trustees of the Board present there and after obtaining the approval of the Chairman shall circulate the minutes to all Trustees, present in India. The minutes shall thereafter be recorded in minute's book as permanent record.
Provided that minutes can also be maintained in any electronic medium such as in computer file, CDs etc.
Provided, further, that minutes shall be circulated to the Trustees at the earliest and in all situation before the next meeting of the Board of Trustees.
- ii) The minutes of each meeting shall be put up before the Board of trustees for confirmation in the next meeting and in case of any modifications/amendments in the next meeting and in case of any modifications/amendments in the minutes it shall be reissued with such modifications/amendments.
- iii) The Secretary shall take necessary steps for carrying out the decision of the Board of Trustees.
- iv) Minutes/resolution in writing signed by the Chairman or Secretary shall be valid and effective as a certified copy of Minutes/resolution passed at a meeting of the Trustees duly convened and held.

7.18 Delegation of Power of Board of Trustees to Committee/Sub-Committee.

The Board of Trustees may delegate any of their powers to a Committee or Sub-committee consisting of such Members of their body as they shall think fit. The Committee/Sub Committee so formed shall in the exercise of the Power so delegated, work in accordance to the direction of the Board of Trustees, if any.

7.19 Absence of a Trustee and Power of remaining trustees.

- i) If any Trustee or Trustees is/are temporarily absent from India, the remaining Trustees who are in India shall during such absence have full powers to act under the Trust as if they were the only Trustees of these present.

- ii) The Trustee shall comply with and carry out all such directions as may be given to them by the Corporation from time to time in relation to any matter in respect of which the Corporation has power under these presents to determine and decide.

Chapter-5

8.0 Contribution

8.1 One-Time Contribution.

- (i) Eligible retired/separated employees who intend to avail of benefits under the Scheme shall be required to pay a onetime contribution as follows:

Category of Employees	³ Amount (Rs.)*
Executives	30,000/-
Supervisors	25,000/-
Workmen	21000/-

*The above amount shall be deposited in favour of POWERGRID Employees Post-Retirement Medical Benefit Trust.

For employees in Workmen category, the one-time contribution shall be recovered in 07 equal monthly instalments prior to their date of superannuation.

- (ii) Eligible employees who join the scheme at a later date shall pay full amount of contribution. The contribution once paid shall not be refundable even if the benefits under the scheme are not availed by the beneficiary or in the event of death of beneficiary/ beneficiaries.
- (iii) Where a retired/ separated employee joins the scheme at a later date and pays his/ her contribution, he/ she can seek advantages under the scheme from the date of his/ her joining the scheme by payment of one-time contribution.

8.2 Contribution to the fund by the Corporation.

The Corporation shall contribute an amount based on actuarial valuation out of overall ceiling limit of 30% of salary of all the employees taken together w.e.f. 01.01.2007. Such contribution will be made on yearly basis. For employee who have retired prior to 01.01.2007, Company shall contribute up to 1.5% of Profit before Tax (PBT) for creation of corpus towards Post-Retirement Medical Benefits.

8.3 Member additional contribution.

If required, member shall pay an amount as notified from time to time as member additional contribution towards scheme. However, the exact amount of contribution shall be decided and separately notified by the Corporation/Trust based on the actuarial valuation of the Scheme liability. This contribution shall be recorded separately.

8.4 Contribution in case of members lent on deputation/secondment & continuity of membership.

- (i) In the event of an eligible employees' service is lent on deputation or secondment by the employer to any other Corporation, firm, association or concern under the management or associated with the Corporation, or to any other CPSE or Government Service or any other organization, for the purpose of these rules, the member's service shall be deemed to be continuous and uninterrupted.
- (ii) For such period of deputation/secondment the contributions payable by the Corporation shall be remitted to the Trust through the Corporation by such concern (borrowing organization).

8.5 Bankers of the Fund.

³ Circular No. 449/2019 dated 17.05.2019

Trustees shall open an account of the Trust with any scheduled commercial bank in India. All money's received by the Trust by way of contribution, interest, redemption of investments or otherwise to the fund may be deposited in the account so opened or utilized for making payments and settlement of medical benefits as per the provisions of these presents.

Chapter-6

9.0 Investment

9.1 Investment of Trust Fund.

- (i) The Corpus of the Trust or any portion thereof will be invested in deposit account with the Bank or such other securities as may be decided by the Trustees.
- (ii) All money received by the Trust shall vest in the Trustees and Trustees shall have power to utilise such money received by way of Contribution, interest and redemption of investments or otherwise. All moneys received by the Trust may be deposited in the Bank account of the Trust or utilized for making payments as per these rules. Such moneys as are not so deposited or utilized shall be invested in the manner specified in Income Tax Act/Rules and/or any other applicable government guidelines/statutory provisions/as may be decided by the Trustees.
- (iii) In case of investment of fund, the securities shall be obtained in the name of Trust. The securities so obtained should be in dematerialized (DEMAT/CSGL) form, if available. The Board of Trustees shall maintain a security wise register and ensure timely realization of interest and maturity value of investment.
- (iv) The DEMAT/CSGL account shall be opened through depository participants approved by the Reserve Bank of India and Central Government in accordance with the instructions issued by the RBI/Central Government in this regard. All such investments made, like purchase of securities, bonds etc shall be lodged in the safe custody of depository participants approved by the Reserve Bank of India and/or Central Government, who shall be the custodian of the same. The cost of maintaining DEMAT/CSGL account shall be borne by the Corporation.

9.2 Power of trustees for sale and hypothecation etc. of the investments.

The Board of Trustees may from time to time, as and when necessary, raise such sum or sums as may be required for the purposes of the Scheme by sale, hypothecation or pledge of the investments held by then or of a sufficient, part thereof for the purpose of payment of medical benefits to the sufficient part thereof for the purpose of payment of medical benefits to the members as per the provisions of these Rules.

9.3 Receipts for money received by Board of trustees.

Receipt for moneys received by the Trustees and endorsement on cheques, drafts and other documents, received by the Trustees shall be made by the secretary for and on behalf of the Board of Trustees.

9.4 Advance from the Corporation.

The Trustees may, when necessary, obtain advance from the Corporation to meet certain urgent obligations as per Rules of the Fund. These advances shall be in the nature of advance against contribution payable under the Rules.

Chapter-7**10.0 Audit and Accounts****10.1 Maintenance of Books of Account.**

- (i) Books of account of Trust shall be maintained in India by the Board of Trustees. It shall contain details of all money received by the Trust and payment made by the Trustee, details of all investments, member's contributions, interest earned by the Trust, benefits paid by the Trust to Members/beneficiary and such other particulars as may be required to give true and fair view of the financial position of the Trust and surplus/deficit for the year. Accounting records shall be maintained and financial statements shall be prepared as per the applicable law and accounting standards.
- (ii) As soon as possible after close of the every Financial Year, the Trustees shall prepare Receipt and Payments Account, Income and Expenditure Account for the year ended and Statement of Affairs as on the last day of the Financial Year.
- (i) The corpus of employees retiring prior to 01.01.2007 and those retiring on or after 01.01.2007 shall be maintained separately.
- (iii) The Board of Trustees may review the availability of money in the Trust at periodic interval as may be deemed fit to decide any revision in the benefits payable, under the Scheme. Board of Trustees may get the actuarial valuation done for the Scheme to decide any revision in the member contribution and benefits under the Scheme.

10.2 Audit.

- (i) Accounts of the Trust shall be audited by a Chartered Accountant or a firm of Chartered Accountants in practice, to be appointed by the Boards of Trustees. Auditors shall have access to all books, papers, vouchers; documents connected with the Trust and shall submit their report in writing to the Board of Trustees. The fee of the Auditor(s) shall be borne by the Corporation.
- (ii) A copy of Audit report, Annual Accounts and Annual report by Secretary shall be placed in the meeting of the Board of Trustees for adoption every year within three months close of the Financial Year. A copy of the audited accounts of the Trust shall also be furnished to the Corporation and other prescribed authorities as and when necessary.

Chapter-8

11.0 BENEFITS

11.1 In case of Superannuation.

The medical benefits to the retired/separated employees and their spouse under the scheme will be admissible for the treatment taken only in India and would be as under:

- (i) The retired/separated employees residing at places where the Corporation has its empanelled hospital would be allowed medical treatment facilities, including medicines as available in such hospitals only.
- (ii) In respect of such retired/separated employees who reside at places where the Corporation does not have its own empanelled hospitals, reimbursement of medical expenses incurred shall be regulated as under :

11.2 Indoor Treatment.

Reimbursement of medical expenses incurred for indoor treatment will be allowed subject to the condition that the treatment is obtained in Government hospitals or other empanelled hospitals notified by the Corporation. The Rules for availing treatment will be same as applicable to regular employees under the Medical Attendance & Treatment Rules.

11.3 Out-patient/Domiciliary Treatment.

- (i) For outpatient/domiciliary treatment taken in empanelled hospitals wherever available, reimbursement may be allowed as in case of regular employees. However, this will be subject to annual ceiling for reimbursement of expenditure which is equivalent to the *maximum of the pay scale of a serving employee of equivalent status/rank, on the last day of the relevant financial year.

*(the said annual ceiling for OPD treatment is subject to change by the employer which will be intimated from time to time).

- (ii) In case of outpatient/ domiciliary treatment taken in other than empanelled hospitals, the reimbursement may be allowed as applicable to regular employees of equivalent status subject to the ceilings as mentioned at (i) above.
- (iii) The expenditure on medicines purchased against the prescriptions of Corporation visiting doctors may be reimbursed subject to the annual ceilings stipulated at (i) above.
- (iv) ⁴Dependent parents of retired/ separated employees shall also be covered under the Scheme for Out- patient/Domiciliary Treatment only and within the overall annual OPD ceiling limit. Dependent parents will be permitted to avail OPD treatment only if they are residing with the retired employee.

Coverage of dependent parents for OPD treatment shall be applicable to all the retired employees. Post-retirement medical expenditure of employees who have retired prior to 01.01.2007 shall be borne by the Company and for employees who have retired after 01.01.2007 shall be borne out of kitty (30% of Basic Pay + DA of employee) available for retirement benefits.

- 11.4 The entitlement of medical benefits for the retired/separated employees, as above, shall be the same as admissible to serving employees of equivalent status/rank and shall be allowed

⁴ Circular No. 405/2018 dated 14.06.2018

as per Corporation's Medical Attendance and Treatment Rules as applicable for serving employees within India ~~⁵except in case of transplants (Artificial Appliances). In case of transplants, 10% of cost of transplants (appliance) shall be borne by the member.~~ ⁶The provision for reimbursement of cost of hearing aid shall also be applicable in case of retired employees and their dependents, within their annual OPD ceiling limit under the PRMB Scheme, as per the modalities under Medical Treatment and Attendance Rules.

11.5 ⁷Reimbursement of expenditure incurred towards robotic surgery shall be allowed in cases of renal and prostate cancer. In all other cases, relaxation shall only be provided on case-to-case basis after review by the Medical Relaxation Committee.

11.6 The employer reserves the right to revise from time to time the benefits under the Scheme keeping in view the applicable Government guidelines, fund position etc.

12.0 PROCEDURE.

- (i) An eligible retired/separated employee who intends to avail of medical benefits under the scheme shall apply for this purpose to the Head of the Region/Office from where he/she has retired/separated, indicating inter-alia, the POWERGRID Region/Office where he wants to register himself for availing the facilities, giving his residential address. In the event, the employee wants to change the place from where he/she wants to avail the benefits; he will have to approach the Region/Office from where he/she is availing the facilities for the change.
- (ii) The HR Department of the Region/Office will, after scrutiny of the application and verification of the eligibility conditions, issue an office order permitting the beneficiary/beneficiaries to avail the benefits with copies to the HR Department and Finance Department of the concerned Office/Region where the retired/separated employee is to be registered.
- (iii) The Region/Office where the retired/separated employee is to be registered shall duly register the retired/separated employee concerned and issue a Medical Card to him in the form prescribed at Annexure-I, after receipt of the prescribed amount of contribution from the retired/separated employee. The amount will be payable to the Region/Office by cash or Demand Draft in favour of POWERGRID drawn on any branch at that place. A copy of the medical card shall also be sent to the concerned Finance and Accounts Department.
- (iv) The Medical Card will be valid for life time of eligible retired/separated employee and/or his/her spouse.

13.0 CLAIM.

- (i) For IPD treatment in any of the empanelled hospital, the HR-Department of the respective Region/ office will be issuing an authorization slip to admit the patient. The hospital will be debited to the medical bills directly to the Corporation which will pass the bills as per the entitlement of employee/ medical rules applicable to regular employees. In case the bill exceeds the entitlement limit or the treatment is not admissible under the medical rules, then the same will be recovered from the retired employee/ member from any amount payable to the member including the medical reimbursement payable to him. In all other case the retired employee shall have to bear the medical expenditure which will be reimbursable thereafter as per medical Rules.

⁵ Circular No. 595/2023 dated 26.12.2023

⁶ Circular No. 524/2022 dated 25.01.2022

⁷ Circular No. 376/2017 dated 05.03.2017

- (ii) For claiming reimbursement of medical expenditure incurred by the beneficiaries, the retired/separated employee shall prefer claim through the ex-employee portal or through POWER SETU mobile app (available on Play store) by scanning and uploading relevant documents viz. prescription, consultation, medicine bill, path charges, etc. with the claim. Offline mode: Beneficiaries having difficulties to access the internet may contact the nodal officer/ facilitator and forward the medical claim in the prescribed form (Annexure – II), duly filled and signed along with prescription and bills in original. Based on such claim, data will be entered in the portal by the Nodal officer/ facilitator and the original bills, along with other documents, will be forwarded to concerned Finance for payment.
- (iii) The claim will be processed and reimbursed to the retired/separated employee by the concerned Accounts Department after verifying the Medical Card and the benefits admissible to the retired/separated employee concerned under the scheme.

Chapter- 9

14.0 Miscellaneous Provisions

14.1 Member to have no interest in the Trust Fund.

- (i) No Member/Beneficiary shall have any interest in any investment made by the Trustees in accordance with the Rules but shall be entitled to receive Benefits in accordance with the Rules.
- (ii) No money belonging to the Trust shall be receivable by the Corporation under any circumstances nor shall the Corporation have any lien charge whatsoever on the Trust Fund. Provided always that the Trustees shall administer the Scheme for the benefit of the Members in accordance with the provisions of these Rules.

15.0 Restraint on assignment or encumbrance.

The Benefits under the Scheme are strictly personal and cannot be assigned, charged, or alienated in any manner whatsoever.

16.0 Amendments of rules.

The Board of Trustees shall have power to make any amendments in the Scheme in respect of management/ operation of funds. However, no alteration in the rules, constitution, objects or conditions of the Rule shall be made without the prior approval of CMD. In case any amendment is required to be approved by the Income Tax authorities, the same shall also be obtained promptly.

17.0 Variance/Discontinuance of Contributions.

The Corporation reserves the right to discontinue making Contributions to the Scheme at any time, after giving three months' notice in writing to the Trustees, and to all the Members of the Scheme.

18.0 Trust deed to prevail.

Should anything contained in these Rules or in any alteration or amendment thereof be inconsistent with the objects or provisions of the Trust Deed, the provisions of the Trust Deed shall prevail. Only such discrepancy coming to the notice of the Trustees shall take steps to amend the said Rules as soon as may reasonably be possible, so as to bring them in conformity with the provisions of the Trust Deed.

19.0 Jurisdiction.

All benefits under the Scheme shall be payable only in India. Should anything contained in these Rules, or in any amendment made thereof be repugnant to any provision or provisions of the Income Tax Act, 1961 or the Income Tax Rules, 1962, or any amendments thereto, the same shall be ineffective to the extent of repugnancy. The Trustees shall remove any such repugnance, if so directed by the Commissioner of Income Tax.

The Courts of Law at Delhi/ New Delhi shall have exclusive jurisdiction over any such disputes arising under this Trust.

20.0 Deduction of sums due to Income tax Authorities.

- (i) In any case, where the Trustees or the Service Provider or the Corporation is liable to account to the income tax authorities for income tax on any payment due under the Scheme, the Trustees or the Service Provider or the Corporation shall deduct a sum equivalent to such tax from such payment and the Service Provider or the Trustees shall not be liable to the Members/beneficiary for the sum so deducted.

- (ii) If the Scheme for any reason ceases to be approved by the Commissioner of Income Tax, the Trustees shall nevertheless remain liable to tax on benefits paid out of the Scheme in so far as such benefits are secured by the Contributions made before the Scheme ceased to be approved by the Commissioner of Income Tax.
- 21.0 **Information of Trust.**
Corporation agreed to promptly furnish to the Trust all such information/particulars regarding the members and such other as may be in its possession and as the Trust may require for the purpose of calculation of the Contribution required to be made by the Member/ Corporation, or for computing the Benefits for the Member.
- 22.0 **Corporation right to terminate member's employment unprejudiced.**
Nothing in these Rules shall be deemed to restrict in any way the rights of the Corporation to terminate the employment of a Member nor shall his being a Member be used by the Member as a ground for or increasing damages in any action brought by such Member against the Corporation in respect of termination of his employment and no expression of intention on the part of the Corporation herein contained shall create for the benefit of the Member any legal obligation or impose any legal liability on the Corporation.
- 23.0 **Interpretation of Rules.**
It shall be a condition of the Membership of the Scheme that on any question arising on any point of interpretation of these Rules or any point relating to cessation of Membership, the decision of the Board of Trustees shall be final and binding. If the decision has any bearing on the provisions of the Income Tax Act, 1961 or the Income Tax Rules, 1962 or any amendments thereto, it has to be forthwith reported to the commissioner Income Tax so requires, the Trustees shall review the decision.
- 24.0 **Severability.**
If any term or provision of this Trust Deed or Trust Rules is declared void or invalid by a decree of a Court of competent jurisdiction such invalidity shall not affect any of the remaining phrase, sentences, clauses and paragraphs of this Trust Deed or Trust Rules.

Chapter- 10

25.0 **General**

- 25.1 In case any doubts arises regarding the genuineness or otherwise of the claims referred by the employee/ spouse of employee, Corporation reserves the right to direct the beneficiary to present himself before a Medical Board and that no reimbursement will be made till recommendations of the Medical Board are received in this regard.
- 25.2 If on the basis of recommendations of the Medical Board or otherwise it is found that there is misuse of the benefits under the Scheme by any beneficiary, he/ she may be summarily debarred from the benefits under the scheme.
- 25.3 The CMD reserves the right to amend, modify or discontinue the scheme in part or full in consultation with the TRUST. Further CMD is authorized to amend, modify and approve any relaxation of minor nature in the contributory scheme of post-retirement medical facilities.
- 25.4 In respect of any matter not covered herein, specific reference will be considered by Corporate-HR Department for decision.

MEDICAL CARD

(Under POWERGRID Employees Post-retirement Medical Facilities)

Registration No. _____

(To be filled in by the registering Office)

1. Name of the retired/separated:
employee and employee number
2. Date of retirement:
3. Designation at the time of retirement:
4. Scale of pay and basic pay as on:
the date of retirement
5. Region/Office from which retired/ separated:
6. Region/Office where registered for medical
benefits: under the scheme
7. Permanent address:
8. Present address:
9. Validity period of the card:

NAME OF THE BENEFICIARIES

(Retired/Separated employee/ spouse) (age)

(Specimen signature of the retired employee/
spouse)

(Specimen signature of issuing
officer)

Date of issue

Designation

Details of the Contribution Paid

Date, Stamp & Signature of receiving officer

Annexure-II

Claim form for Reimbursement of Medical Expenses Incurred by the Retired Employee/Spouse
 (Under Contributory scheme for post-retirement medical facilities)

Medical Card Number:

Name & Grade of the employee who has retired	Employee No:	Last Pay drawn (Basic Pay and Scale of Pay)
Present Address at which Cheque is to be sent/ECS A/C No		IFSC Code:

DETAILS OF AMOUNT CLAIMED							
NON HOSPITALISATION CASES							
Patient's Name & Relation	Name of the Hospitals / Doctor	Doctor's Qualifications	Consultation date	Cash Memo No:	Consultation charges	Cost of medicines	Investigation Charges
					(1)	(2)	(3)
Total of 1+2+3 in Rs.							
DETAILS OF AMOUNT DISALLOWED							
Reasons							Amount
1.							
2.							
3.							
4.							
AO/SR.A.O							

(To be filled in case of Hospitalisation)

DETAILS OF AMOUNT CLAIMED				
Hospitalization Cases			Amount	
Patient's Name & Relation	Name of Hospital	Accommodation charges	Cost of Medicine (Rs)	Surgical Operation Confinement Charges (Rs.)

		From Date	To Date	Rate/Day	Amount		
Total 1+2+3 in Rs.							
DETAILS OF AMOUNT DISALLOWED							
Reasons						Amount	
1.							
2.							
3.							
4.							
						AO/SR.A.O	

Note:

- 1) Doctor's Prescription and cash memos in original should be attached.
- 2) Receipts for amount claimed should be enclosed.
- 3) Separate claims should be prepared for each patient and each spell of treatment.

(To be certified by the Retired Employee/ Spouse)

- (a) The statements made in the claim are true to best of my knowledge and belief.
- (b) I am member of contributory scheme for post-retirement medical facilities in case of death of serving employee and my medical card is valid since.....
- (c) I continue to fulfil the conditions of eligibility for availing the benefits under the scheme
- (d) The medical expenses were incurred for self.
- (e) I fully understand that the company may refuse/ terminate my membership of the scheme at my time without any notice and without assigning any reasons.

Date :

(Signature of retired employees/ spouse)

Life Certificate for availing benefit under POWERGRID Post Retirement Medical Benefit Scheme.

Sl. No	Beneficiary	Name	Signature
1	Retired Employee		
2	Spouse		
3	Mother (*)		
4	Father (*)		

(*) I hereby certify that Father/Mother or both (if applicable) as mentioned above is/are dependent on me (tick as per dependency) and residing with me.

Details of the Retired Employee:

1. Employee No. : _____
2. Date of Retirement : _____
3. Designation/ Grade : _____
4. Email ID : _____
5. Address : _____

6. Mobile No. : _____

I hereby certify that above mentioned parson(s) has/have signed this Form in my presence on.....Day of20.....

***Signature**

Name : _____

Employee No. & Designation : _____

Place of Posting : _____

Date : _____

(Official Seal)

* The above certificate shall be certified by Bank Manager/Gazetted Officer or any POWERGRID Executive